

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT'S NOTICE OF PLAINTIFF'S SELF-NEGATING
ALLEGATIONS AND THE COURT'S PRESUMPTIVE ACCEPTANCE
THEREOF**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits this Notice to preserve for the record a paradigmatic example of the incoherence, factual inaccuracy, and legal impossibility of Plaintiffs' principal allegations—an incoherence which, to date, the Court has neither addressed nor required Plaintiffs to rectify, thereby placing Defendant at risk of judgment by presumption rather than by proof.

I. A SINGLE PARAGRAPH THAT COLLAPSES THE ENTIRE CASE

Paragraph 93 of the Complaint reads:

“Moszkowski hid facts and provided false and misleading information to the Board about the Toke Oil & Gas structure, ownership, directorship, operations, and the nature of the relationship between DeepGulf and Toke Oil & Gas, and DeepGulf should have received, at a minimum, its pro rata portion of profits from Toke Oil & Gas activity.”

This sentence is not merely incorrect; it is **self-negating**, internally contradictory, and demonstrably refuted by the documentary record.

Let us examine each clause:

- **“Moszkowski hid facts and provided false and misleading information to the Board”**

→ *Which information?* No specific falsehoods are identified. No document is cited. No contradiction is alleged between Defendant’s written reports and actual events. The allegation is entirely abstract.

- **“...about the Toke Oil & Gas structure”**

→ *Which was always transparently disclosed to be a 3-owner entity, each holding **33.33%**, among them Defendant who kept his share for the benefit of DeepGulf. Defendant’s contemporaneous presentations and email reports confirm this repeatedly.*

- **“...ownership”**

→ 3 owners, clearly stated in legal filings, diagrams, and emails—including exhibits submitted to U.S. federal agencies and to the Plaintiff himself.

- **“...directorship”**

→ *Also 3 directors*, including the Defendant, whose names were known to all parties and appeared on official Timorese and company documentation, accessible and shared with Plaintiff’s leadership.

- **“...operations”**

→ *Which consisted of inshore and offshore surveys*, contracted through known suppliers, openly invoiced and publicly reported.

- **“...and the nature of the relationship between DeepGulf and Toke Oil & Gas”**

→ *A standard supplier-client arrangement*, with DeepGulf acting primarily as a contractor and technical service provider, not a shareholder or controlling party.

Yet, the paragraph concludes:

“...and DeepGulf should have received, at a minimum, its pro rata portion of profits from Toke Oil & Gas activity.”

This reveals the **fatal contradiction**:

1. If **DeepGulf had owned Toke**, it would not have been entitled to a *pro rata* share, but **100%**.
2. If **DeepGulf was only entitled to a *pro rata* share**, then it **did not own** Toke. This contradiction is not semantic; it is fatal to the underlying theory of Plaintiff's entitlement.
3. In reality, **DeepGulf did not own any part of Toke**, but nonetheless received **50.3% of all proceeds** from Toke's activity for the Defendant's 33.33% stake, thus exceeding any theoretical *pro rata* entitlement.
4. **More than \$1.3 million was wired to DeepGulf** from Toke between 2008 and 2012. If the corporate structure were hidden, **how did this happen?** Who wired the funds? Where are the objections raised at the time?

II. A COURT THAT DOES NOT ASK QUESTIONS

Despite this blatant contradiction—sitting at the heart of Plaintiffs' case—the Court has:

- Issued no order demanding evidentiary clarification;
- Ignored sworn declarations and exhibits disproving these claims;

- Failed to rule on or acknowledge Defendant's motions addressing these very contradictions;
- Proceeded as though Plaintiff's narrative were internally coherent, legally valid, and supported by evidence.

This gives the appearance that the Court has **presumed the Defendant's guilt**, without factual basis or evidentiary threshold, and without requiring Plaintiffs to meet even the minimal pleading standards articulated in Rule 1.110(b) and *Ibar v. Rogers*.

III. A CASE BUILT ON NONSENSE

The Complaint, when reduced to its actual content, accuses Defendant of:

- Generating millions of dollars in value for DeepGulf,
- Disclosing ownership structures in real time,
- Returning more than DeepGulf's fair share of profits,
- But allegedly "hiding" all of it—despite written documentation, company bank statements, and repeated Board-level communication.

Importantly, **no such accusations were raised until years after the events described**—and only after the relationship between Plaintiff Howard and Defendant broke down in two decisive stages:

1. In **September 2014**, when Howard sought to have his name added to one of Defendant's patents, despite having made no technical contribution—a demand Defendant rejected as both undeserved and legally improper;
2. In **July 2016**, when Defendant informed Howard that he wanted him out of DeepGulf, citing his prolonged failure to raise capital, managerial incompetence, and the unjust expectation that third parties continue funding Defendant's work without compensation.

It was only **after these ruptures** that Howard began weaponizing legal process to reverse years of approved operations and documented profit-sharing.

In effect, Plaintiffs accuse Defendant of **being both transparent and deceptive**, of **enriching the company while unjustly enriching himself**, and of **owning the foreign entity yet concealing that he did not**.

This is not a cognizable cause of action. It is rhetorical incoherence weaponized through legal process.

Plaintiffs never objected contemporaneously to any of the disclosures or payments—until the relationship deteriorated years later, indicating not

fraud but retaliation.

IV. A RECORD THAT COULD NOT HAVE BEEN READ

The disparity in volume and effort is not merely rhetorical—it is **quantifiable**:

- In the remanded case **Plaintiffs** filed approximately **329 pages** in total, across all pleadings, averaging **9 pages per filing**.
- **Defendant**, by contrast, has filed **2,800 pages** to date—an average of **17 pages per filing**—including sworn declarations, evidentiary exhibits, legal arguments, and fact-intensive rebuttals.
- **The Court**, across all orders and minute entries, has issued **53 pages total**, averaging **2.3 pages per filing**, often consisting of cursory, single-sentence denials devoid of legal or factual explanation.

Although Plaintiffs also uploaded **621 pages** in a single filing, that submission merely **duplicated the previously adjudicated federal case** and was made only **in response to a threatened case closure for inactivity**. It introduced **no new facts, no new legal argument, and no case-specific development**. It cannot reasonably be counted as part of the substantive record in the remanded matter.

Assuming a highly efficient reading pace of **30 seconds per page**, it would require over **1,400 minutes—nearly 24 hours of uninterrupted reading**—just to *skim* Defendant's filings once.

This equates to **three full 8-hour workdays**, and assumes:

- That each filing is read only **once**,
- That no **cross-referencing, fact-checking, or legal research** is required,
- That every paragraph is **instantly understood** and raises no questions.

This standard is incompatible with the Court's duty to adjudicate based on the record. The **brevity and opacity of the Court's rulings**, when contrasted with the magnitude of the Defendant's submissions, makes clear:

The Court did not, and likely could not, have read Defendant's filings in any meaningful way.

This is not mere judicial expediency—it is a **constructive denial of due process**. A litigant who submits nearly 3,000 pages of documented rebuttal,

only to be met with silence or summary rejection, has not been “heard.” He has been procedurally silenced, if not erased.

And finally:

Had the Court treated Defendant’s pleadings with the attention they deserved, **he would not have needed to write so many pages** in the desperate hope that his voice might, at last, be heard.

WHEREFORE, Defendant respectfully submits this Notice to preserve the record, challenge the legal sufficiency of the Complaint, and object to the Court’s continuing silence in the face of blatant contradictions that nullify Plaintiffs’ own claims. Defendant reserves all constitutional and appellate rights.

Respectfully submitted this 14th day of July, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that, on this 14th day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

M. Marzowski